

Radio Act, 1957

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Radio Act, 2014

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Amending Acts

Royal Seal and Publication Date

1. Some Nepal Laws (Amendment and Reorganization) Act, 2020 2020.11.16
2. Judicial Administration Reform Act, 2031 2031.4.18
3. Radio (First Amendment) Act, 2046 2046.7.11
4. Act to Amend Some Nepal Acts Relating to Communications, 2047 2047.7.14
5. Judicial Administration Act, 2048 2048.2.16
6. Act to Amend Some Nepal Acts Relating to Communications, 2057 2057.10.18

Authentication and Publication Date

7. Act to Revive Provisions of Some Nepal Acts, 2063 2063.4.23
8. Act to Strengthen the Republic and Amend Some Nepal Laws, 2066 2066.1.7
9. Act to Amend Some Nepal Acts, 2072 2072.11.13

Act No. 26 of the year 2014

An Act to Control and Regulate the Keeping, Making, and Using of Radio Apparatus in Nepal

Whereas it is desirable to maintain peace and order and the good conduct of the general public by controlling and regulating the keeping, making, and using of radio apparatus in Nepal, amended by Some Nepal Laws (Amendment and Reorganization) Act, 2020. this Act is hereby enacted and promulgated by His Majesty the King. 1. Short Title, Extension, and Commencement: (1) This Act may be called the "Radio Act, 2014."

(2) This Act shall extend to the whole of Nepal.

(3) This Act shall come into force on such date as the Government of Nepal may appoint by notification published in the Nepal Gazette. The Act is appointed to commence from 2016.9.16 according to the notification published in the Nepal Gazette dated 2016.9.13. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

Amended by the First Amendment.(a) "Radio apparatus" means the following apparatus used for the purpose of receiving or sending words, images, or signals by radio waves without continuous wire connection:

(1) All types of satellite receiving systems including dish antenna,

(2) The following within the radio spectrum from 30 kilohertz to 3000 gigahertz frequency:

- (a) L.F., M.F., H.F., V.H.F., U.H.F., S.H.F., E.H.F. transmitters and communication devices,
 - (b) Radio transmitter,
 - (c) Television transmitter,
 - (d) Wireless transmitter,
 - (e) Walkie-talkie,
 - (f) Cordless telephone,
 - (g) Video sender,
 - (h) Amateur radio,
 - (i) All types of satellite communication devices including Inmarsat,
- (3) Cordless microphone,
- (4) Radio-controlled toys and models,
- (5) Radio receiver, television receiver, video monitor, and
- (6) Such apparatus as the Government of Nepal may, by notification in the Nepal Gazette, designate as radio apparatus from time to time.

(b) "Prescribed" or "as prescribed" means prescribed or as prescribed by the rules made under this Act. 3.

Prohibition on Keeping, Making, or Using Radio Apparatus Without License: Except as otherwise provided in Section 4, no person shall keep, make, or use any radio apparatus without a license obtained under this Act. Amended by the Ordinance to Amend Some Nepal Acts Relating to Communications, 2062, and automatically revived by the Act to Revive Provisions of Some Nepal Acts, 2063. Provided that a person who has obtained a license to operate telecommunications services under the Telecommunications Act, 2053, or a subscriber using telecommunications services through such person, shall not be required to obtain a license under this Act for keeping, making, or using radio apparatus related to telecommunications services.

4. Power of Government of Nepal to Exempt Any Person or Institution or Radio Apparatus from the Application of this Act: The Government of Nepal may, by rules made under this Act, with or without imposing certain conditions, exempt any person or institution or any radio apparatus as prescribed from the application of the provisions of this Act. 5. Manner of Obtaining License: (1) Any person desiring to obtain a license under this Act shall submit an application in the prescribed form along with the prescribed fee to the Government of Nepal or an officer designated by the Government of Nepal. Upon receipt of such application, the Government of Nepal or the officer designated by it may, as the case may be, grant a license in the prescribed form. Deleted by the First Amendment. (2) The duration of each license granted under sub-section (1), the manner of its renewal, and the fee payable for such renewal shall be as prescribed. (3) If an officer other than the Government of Nepal designated by the Government of Nepal refuses to grant the license applied for in the application submitted under sub-sections (1) and (2), the person aggrieved by such refusal may, within 35 days from the date of receipt of the order of refusal, file an appeal against such order with the Government of Nepal, and the decision of the Government of Nepal on such appeal shall be final. Amended by the Act to Amend Some Nepal Acts Relating to Communications, 2057.6.

Penalty: (1) If any person keeps, makes, or uses any radio apparatus without a license as required by Section 3, the Government of Nepal or an officer designated by the Government of Nepal shall confiscate such radio apparatus and impose a fine equal to the value of the radio apparatus, determined by assessing its value, on the person keeping, making, or using the radio apparatus. (2) If any person does any other act contrary to this Act or the rules made under this Act, other than as mentioned in sub-section (1), the

Government of Nepal or an officer designated by the Government of Nepal may impose a fine not exceeding fifty thousand rupees on such person. (3) If any person repeats an act punishable under sub-section (1) or (2), such person shall be liable to double the initial penalty. 7. Amended by the Act to Amend Some Nepal Acts Relating to Communications, 2047. Chief District Officer May Issue Search Warrant: (1) If there is reasonable cause to suspect that any radio apparatus related to an offense punishable under this Act is in any house, land, or vehicle of any kind, the Amended by the Act to Amend Some Nepal Acts Relating to Communications, 2047. Chief District Officer may, at any time, issue a warrant to search such house, land, or vehicle. (2) An officer receiving a warrant to search under sub-section (1) may enter any house, land, or vehicle mentioned in such warrant and take possession of any radio apparatus which he suspects to be related to an offense punishable under this Act. 8. Confiscated Radio Apparatus to Belong to Government of Nepal: All radio apparatus confiscated under sub-section (2) of Section 6 and unclaimed radio apparatus shall belong to the Government of Nepal. 9. Appeal: If any person is not satisfied with the decision of the Government of Nepal or an officer designated by the Government of Nepal under Section 6, such person may file an appeal against such decision in the Amended by the Act to Amend Some Nepal Acts, 2072. High Court. 10.

Power to Make Rules: (1) For the purpose of achieving the objectives of this Act, the Government of Nepal may make rules by notification published in the Nepal Gazette. (2) Without prejudice to the generality of the power conferred by sub-section (1), such rules may in particular make provision for the following matters: (a) Deleted by the First Amendment. (b) Persons or institutions to which this Act shall not apply, (c) Procedure and conditions for granting, renewing, suspending, and revoking licenses, the form of license, and the fee payable for granting and renewing licenses, (d) Maintenance of records of radio apparatus acquired, sold, distributed, or kept in possession by dealers of radio apparatus, (e) Conditions to be complied with by persons making or dealing in radio apparatus while making or selling and distributing radio apparatus, and (f) Other matters required to be prescribed under this Act. (3) Deleted by the First Amendment